SALES CONTRACT

NO: SC24040100
DATE: April 01st, 2024

THE SELLER: Philip Morris International Inc.

Add: 677 Washington Blvd., Ste. 1100. Stamford, CT 06901 U.S.A.

Tel: 1 917 663 2233

Fax: 41 58 242 00 00

Represented by: MS. KALPANA MORPARIA – DIRECTOR

THE BUYER: VIETNAM TOBACCO IMPORT EXPORT COMPANY

Add: 41 Le Quy Don, Vo Thi Sau Ward, District 3, Ho Chi Minh City, Vietnam

Tel: 84.28.3932.2330

Fax: 84.28.3932.2331

Represented by: MR. NGUYEN XUAN TOAN – DEPUTY GENERAL DIRECTION

This contract is made out by and between the Seller and the Buyer; Whereby the Seller agrees to sell and the Buyer agrees to buy the under-mentioned goods subjects to the terms and conditions as below:

ARTICLE 1. Commodity-Specifications and price

The Seller agrees to supply and deliver goods in accordance with the detailed descriptions, quantities and price as described below:

Item#	Description	Quantity	Unit Price	Total (USD)
1/.	Marlboro RED Soft Pack Cigarettes	120,000 PACK	USD 1.05/PACK	USD 126,000
TOTAL CIF		120,000 PACK		USD 126,000

Say: U.S Dollars One Hundred Twenty Six Thousands Only

- Price : CIF Cat Lai Port in accordance with INCOTERMS 2020

ARTICLE 2. Origin: United States

ARTICLE 3. Quality of Product :

All commodities bear the trademarks "MARLBORO" being manufactured new 100% in export standard of manufacturer mentioned in article 1 and suitable for Vietnam standard.

ARTICLE 4. Shipment

a) Port of Shipment : NEW YORK, UNITED STATES
b) Port of Destination : CAT LAI PORT, VIETNAM

The Seller take charge of all the Customs declaration and the relative charges, and send the goods to Buyer's factory address as indicated; The Buyer take charge of all the import tax and VAT in Vietnam, in addition the Buyer not to afford any charges.

c) Time of shipment : 3 – April – 2024
d) Partial shipment : Not Allowed
e) Transshipment : Allowed
f) Date of delivery : 5 – May – 2024
g) Transaction location

All the charge or risk shall be born by the Seller before handling over the goods to Buyer; And the Buyer will be responsible for all the fees and risk after taking over the goods.

ARTICLE 5. Packing:

The export standard packing, suitable for all means of transportations.

ARTICLE 6. Payment and bank information:

The buyer shall pay 30% out of the value order in advance and the rest of 70% out of value order after receiving the scanned Original Bill of Lading.

BENEFICIARY: Philip Morris International Inc.

BANK ACCOUNT (USD): 2571714302

BANK NAME: Wells Fargo Bank STAMFORD ELM STREET branch

BANK ADDRESS: 597 ELM ST STAMFORD, CT, 06902

SWIFT CODE: WFBIUS6S

Important: Payment MUST be subject to this contract. Any change must be confirmed by phone or signed paper.

ARTICLE 7. Documents required:

All bank charges within Vietnam are paid by Buyer and outside Vietnam are paid by Seller upon the Seller's presentation of the following shipping documents include:

- 03 originals and 01 copy of the Signed Commercial Invoice
- 03 originals of Signed Detailed Packing list
- 03 originals of the Bill of Lading
- 01 original of the Certificate of Origin

ARTICLE 8. Insurance:

To be covered by Seller for all risk, war risk and SRCC for 110% of Invoice value. Insurance policy must show claim payable in Ha Noi, Vietnam in invoice currency.

ARTICLE 9. Inspection-Claim:

(1) Quality/Quantity Discrepancy:

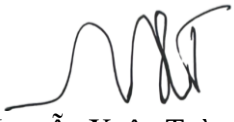
In case of the any，quality discrepancy, claim should be filed by the Buyer within 30 days after the arrival of the goods at port of destination; while for the Quantity discrepancy, claim should be filed by the Buyer within 15 days after the arrival of the goods at port of destination. It will be based on survey report of Micontrol at Vietnam and such inspection result shall be deemed as final to both Buyer and Seller.

(2) If one party can not carry out or fulfill the contract, the party should pay 20% of the contract value as compensation; if the compensation is lower than the actural cost, the party should make up to the value.

(3) If there were adulterated products founded or unreal invoice provided by the Seller, the Seller shall pay 100% contract value to the Buyer as default punishment, and compensate all of the damages caused by the Seller; In seriouse circumstances, it will be handed to the relative authority. If the products is involved in prohibited content such as Melamine or related content, they will be treated as adulterated products.

ARTICLE 10. Other clauses:

a. The contract has been prepared in two original copies in Vietnamese-English language. The Seller& the Buyer will possess one copy each. In the case of different interpretations between the Vietnamese and English, two sides agreed to use in Vietnamese.
b. This Contract will be signed and sent through fax or via e-mail.
c. Any changes or amendments shall be made in writing and signed by both parties.

FOR THE SELLER	FOR THE BUYER
	
Kalpana Morparia	Nguyễn Xuân Toàn